

ORDER

23 June 2026

In the County Court at Online Civil Claims

Amy Powell

Case Reference:

1782224593967621

Case Number:

007KA362



Parties	Test Inc (by his litigation friend Bob the litigant friend)	Claimant
	Sir John Doe	Defendant
	Dr Foo Bar	Defendant

Warning: You must comply with the terms imposed upon you by this order otherwise your claim or the defence of it is liable to be struck out or some other sanction imposed. If you cannot comply, you are expected to make a formal application to the court before any deadline imposed upon you expires.

Upon considering the statements of case and the information provided by the parties,

It is ordered that:

1. Uploading documents

Where this order provides for the upload of documents to the digital portal the following paragraphs shall apply:

1. Where a document is uploaded to the digital portal it is for all purposes:
 - a) filed with the court; and
 - b) where applicable served on any other party to the claim
2. If the claim no longer proceeds in the digital portal a document should not be uploaded and must instead:
 - a) be filed at court; and
 - b) where appropriate served on any other party in accordance with one of the

methods permitted in the Civil Procedure Rules (Parts 5 and 6 contain provisions for filing and service)

2. The claim is allocated to the Fast Track and is assigned to complexity band 1 because A very good reason.

Alternative dispute resolution

3. At all stages, the parties must consider settling this litigation by any means of Alternative Dispute Resolution. This includes round table conferences, early neutral evaluation, mediation and arbitration. Any party not engaging in any such means proposed by another must upload to the Digital Portal a witness statement giving reasons within 21 days of receipt of that proposal. That witness statement must not be shown to the trial judge until questions of costs arise.

Variation of directions

4. The Parties may, by written agreement, extend time for compliance with a direction where that is permitted by CPR 3.8(4). Otherwise, the time for compliance with a direction may only be extended by making an application.

Settlement

5. Each party must inform the Court immediately if the case is settled whether or not it is then possible to upload to the Digital Portal a draft consent order to give effect to their agreement.

Disclosure of documents

6. Standard disclosure shall be provided by the parties by uploading to the Digital Portal their list of documents by 4pm on **07 July 2026**.
7. Any request to inspect a document, or for a copy of a document, shall be made directly to the other party by 4pm on **14 July 2026**. Requests will be complied with within 7 days of the receipt of the request.

Witnesses of fact

8. Each party must upload to the Digital Portal copies of the statements of all witnesses of fact on whom they intend to rely.
9. Witness statements shall be uploaded to the Digital Portal by 4pm on **28 July 2026**.
10. Evidence will not be permitted at trial from a witness whose statement has not been uploaded in accordance with the Order, except with permission from the Court.

Schedules or counter-schedules of loss

11. The claimant must upload to the Digital Portal an up-to-date schedule of loss by 4pm on **15 September 2026**.
12. If the defendant wants to challenge this claim, upload to the Digital Portal counter-schedule of loss by 4pm on **29 September 2026**.
13. If there is a claim for future pecuniary loss and the parties have not already set out their case on periodical payments, they must do so in the respective schedule and counter-schedule.

Trial

14. The trial will be heard between **10 November 2026** and **12 January 2027**. The time estimate is **1 hour**.

15. If either party considers that the time estimate is insufficient, they must inform the court within 7 days of the date of this order.

Preparation for Trial Section A - claim is proceeding in the Digital Portal

16. If by a date no later than 14 days before the trial the claim is proceeding in the Digital Portal, then the following directions in this section will apply on the basis the bundle ("bundle") will be automatically generated in the Digital Portal for use by the parties and the judge at the hearing
17. By a date no later than 14 days before the trial date the parties must in accordance with Civil Procedure Rules Practice Direction 32 paragraph 27:
- a. endeavour to agree the contents of the bundle, a case summary and chronology; and
 - b. Upload all documents to the Digital Portal which have not already been uploaded and upon which the parties intend to rely and refer to at the hearing and shall include a case summary and chronology prepared by the Claimant
18. If the parties agree that the bundle is not suitable for the hearing, then they may, after that bundle has been automatically generated, and not less than 3 days before the hearing, upload an agreed hearing bundle, in which case
- a. The agreed bundle must have the file name "agreed hearing bundle"
 - b. The bundle must be indexed, paginated and bookmarked. The pagination should start at page 1 for the first page of the bundle and must run sequentially thereafter. The bundle must comply with paras 1-10 of the court's general guidance on electronic court bundles (<https://www.judiciary.uk/guidance-and-resources/general-guidance-on-electronic-court-bundles/>)
 - c. The agreed bundle must comply with the requirements of Civil Procedure Rules Rule 39.5 and Practice Direction 32 paragraph 27.
19. The Claimant shall ensure a paper version of the bundle prepared in accordance with either of the above paragraphs shall be:
- a. brought to court on the day of the hearing for use by a party or witness giving evidence; and
 - b. where a party or witness will attend remotely a separate copy is provided to that party or witness as appropriate.
20. If the Claimant is unrepresented and the Defendant is legally represented, then the Defendant must where applicable comply with the requirement to upload an agreed bundle and provide a paper bundle in accordance with the above paragraphs.

Preparation for Trial Section B – claim has been transferred out of the Digital Portal

21. If by the date no later than 14 days before trial the claim is no longer proceeding in the Digital Portal, the following directions in this section shall apply
- 22.
- a. Not more than seven nor less than three clear days before the trial, the claimant must file at court and serve an indexed and paginated bundle of documents which complies with the requirements Civil Procedure Rules Rule 39.5 and paragraph 27 of Practice Direction 32
 - b. The parties must endeavour to agree the contents of the bundle before it is filed, and it shall include a case summary and a chronology.
23. The Claimant shall ensure a copy of the bundle prepared in accordance with the paragraph above shall be:
- a. brought to court on the day of the hearing for use by a party or witness giving evidence; and
 - b. where a party or witness will attend remotely a separate copy is provided to that party or witness as appropriate.

If the Claimant is unrepresented and the Defendant is legally represented, then the Defendant must comply with the paragraphs above in this section

Hearing method

- 24.** This hearing will be in **person**, at Central London County Court, Thomas More Building, Royal Courts of Justice, Strand, London WC2A 2LL, further details will be provided in your hearing notice.

Clinical negligence

Retention of documents:

- 25.** Documents should be retained as follows:
- a) The parties must retain all electronically stored documents relating to the issues in this claim.
 - b) the defendant must retain the original clinical notes relating to the issues in this claim. The defendant must give facilities for inspection by the claimant, the claimant's legal advisers and experts of these original notes on 7 days written notice.
 - c) Legible copies of the medical and educational records of the claimant are to be placed in a separate paginated bundle by the claimant's solicitors and kept up to date. All references to medical notes are to be made by reference to the pages in that bundle.

Road traffic accident

- 26.** Photographs and/or a plan of the accident location shall be prepared and agreed by the parties and uploaded to the Digital Portal by 4pm on **18 August 2026**.

Important notes

- 27.** This order has been made without hearing. Each party has the right to apply to have this Order set aside or varied. Any such application must be received by the Court (together with the appropriate fee) by 4pm on 30 June 2026.